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Morgan County
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CMA Board Approval: 04/14/2025
Effective date: 05/01/2025

COOLFONT MOUNTAINSIDE ASSOCIATION
TRASH POLICY RESOLUTION
POLICY RESOLUTION 2025-05

This Policy Resolution supersedes Policy Resolution 2020-05 of the same name, approved in October 2020 and recorded at the Morgan County West Virginia Courthouse in book 285, Page 572.

Authority

WHEREAS, CMA Articles of Incorporation stipulate a reason for CMA existence is to provide exterior maintenance for the lots and homes within The Properties, maintain unkempt lands, fix assessments (or charges) to be levied against The Properties, and do any other thing that, in the opinion of the Board, promotes the common benefit and enjoyment of the residents; and

WHEREAS, CMA Declaration of Covenants and Restrictions, Article IV, Section 2, Paragraph (c) and (d) provide for suspension of the enjoyment of rights of any Member for any period during which assessments are unpaid and for infraction of published rules and regulations and to charge reasonable other fees for the use of the Common Properties; and

WHEREAS, CMA Declaration of Covenants and Restrictions, Article V, and Bylaws, Articles 3 and 8 create an assessment obligation for owners, empower the Board to make assessments for the common expenses of the Association, and to establish guidelines for enforcing the assessment covenant against owners by any lawful means; and

WHEREAS, the CMA Declaration of Covenants and Restrictions, Article VI, Section 7, Maintenance of Lots, stipulates no refuse pile or unsightly objects shall be allowed to be placed or to remain anywhere thereon, and trash garbage, or other waste or refuse shall not be kept except in sanitary and covered containers and in a clean and sanitary condition; and

WHEREAS, the CMA Declaration of Covenants and Restrictions, Article VI, Section 9, Nuisances, stipulates no noxious, offensive, or potentially dangerous activity shall be permitted

COOLFONT MOUNTAINSIDE ASSOCIATION
133 ROBERT DRIVE
BERKELEY SPRINGS WV 25411-6252

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on any lot or within the subdivision; and strewn about trash and garbage is considered a nuisance that draws in bears and other wildlife that can be dangerous; and

WHEREAS, the CMA Bylaws, Article 5, Section 5.2 states the Board shall make and publish rules and regulations, not inconsistent with the Articles, the Covenants, or law for the use and enjoyment of, and the imposition of penalties with respect thereto, the Common Properties by members, immediate family of members, guests, and tenants; such rules and regulations shall include procedures to assure any penalties shall not be arbitrary or unreasonable and provide a mechanism for appeal; and Section 5.3 states after the Board has adopted and published such rules and regulations, if the personal conduct of any member, guest, or tenant violates such the Board may suspend the rights of any such person and the responsible member; and

WHEREAS, CMA is located in a wildland habitat and the wildlife can be negatively impacted by our trash, that encountering wildlife during foraging can be dangerous to people, and that wildlife can cause our trash to be strewn throughout our environment, negatively impacting it;

NOW, THEREFORE, IT IS HEREBY RESOLVED the Board adopts the following Trash Control Policy:

I. Overview

A. Each owner is responsible for proper disposal of trash resulting from their property's use, whether by themselves, guests, or tenants. Further, owners are responsible for providing instruction to guests and tenants on proper trash disposal, including use of any trash bins and containers provided in a manner that protects themselves, wildlife, and the community.
B. Owners may stipulate self-haul away of trash to remote collection sites or may contract for collection with a local trash collection company.
C. Owners, guests, or tenants that contract for trash collection:
    1. Must collect or maintain trash on the exterior of their residence in a wildlife proof container.
    2. Will only use exterior containers that are heavy duty, well-constructed, and "bear-proof," and maintain them to remain so. Exterior containers must have lockable lids that strongly deter, if not prevent, wildlife access, as well as to prevent trash distribution by wind and weather.

3. Owners that have guests or tenants must prominently post on their premises the instructions for use of the exterior containers they provide for trash disposal along with information for guests/tenants on the problems trash presents in wildland environments. Further, owners will refrain from using and advise guests and tenants not to use other owner's exterior trash containers.
4. Overflowing exterior trash containers are not allowed. Any trash that does not fit in and allow proper closure and locking of container lids must be self-hauled to a local trash collector or be maintained interior to the residence until the exterior unit is emptied or the trash is self-hauled away.

II. Enforcement

A. Owners whose trash containers are broken into, no matter the means, are responsible for cleaning up the trash from their own property and wherever it has spread, as well as re-securing, repairing, or disposing of the trash container.
   1. Members or visitors who observe trash containers breached by wildlife or overflowing will try to inform the owner. They should also inform the CMA Site Manager, providing the lot owner's name and lot number, if known. The Site Manager, or other CMA authority in the absence of the Site Manager, will make official notification to the owner of their responsibility to remedy the situation. The Site Manager will maintain a record of notifications.
   2. Owners have 24 hours from notification to remedy the situation.
   3. After 24 hours from notification, the owner will become liable for a trash clean-up fee at a rate as defined in the CMA Schedule of Fines, Fees, and Charges, plus an administrative fee per occurrence. The Site Manager, or other CMA authority in the absence of the Site Manager, may arrange for cleanup of the trash.
   4. The owner is responsible for repair, replacement, or removal of the trash container as appropriate within 30 days. If not repaired, replaced, or removed, the Site Manager may arrange for the repair or removal of the container at the owner's expense.
   5. The Site Manager will include such notifications and resulting actions in their monthly report to the Board and report any charges to the Treasurer and accounting support contractor.
B. This policy shall be incorporated in and referred to by appropriate CMA rules and regulations.

1. If there is conflict between this policy and the Articles of Incorporation, Covenants and Restrictions, or Bylaws, those documents take precedence.
2. If there is conflict between this policy and other CMA rules and regulations, the latest dated material takes precedence.
3. Any conflict will be brought to the Board's attention for resolution.

C. Further information on living with wildlife and "bear proof" or "wildlife proof" containers can be found at:
   1. Living with Wildlife Foundation, https://lwwf.org
   2. Interagency Grizzly Bear, http://igbconline.org
   3. West Virginia Bear Guidance, https://commerce.wv.gov/what-to-do-if-you-encounter-a-black-bear-this-spring/

   By listing the resources indicated, CMA does not endorse the organizations, equipment, or beliefs they may espouse; the listing is provided as a source of information for owners' consideration and education along with conducting their own research on the topic.

CMA Board Approval: 04/14/2025
Effective date: 05/01/2025

COOLFONT MOUNTAINSIDE ASSOCIATION
POLICY RESOLUTION 2025-05 ACTION RECORD

Duly adopted at a meeting of the Board of Directors held: April 14, 2025

Motion by: ___Iris Melton_____ Seconded by: _____Steve Katz_____

VOTE:

	YES	NO	ABSTAIN	ABSENT
Steve Katz, President	____X____	_____	_____	_____
Norm Rosenberg, Vice President	____X____	_____	_____	_____
Valerie Creason, Secretary	____X____	_____	_____	_____
Dawne Holz, Treasurer	_____	_____	_____	____X_____
Iris Melton, Director	____X____	_____	_____	_____
Dave Creason, Director	____X____	_____	_____	_____
John Wennersten, Director	____X____	_____	_____	_____

ATTEST:

Valerie Lm Creason _____ 05/06/2025 _____

Secretary Date